

**Superior Court of the State of California
County of Orange**

DEPT C25 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 2 p.m. on Thursday. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5225. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

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Date: September 15, 2023

1	Aguilar vs. Resource Employment Solutions California 2022-01298430	1. Motion to Compel Arbitration 2. Motion to Compel Arbitration 3. Case Management Conference Motion No. 1 Defendant Houdini, Inc.'s Motion to Compel Arbitration and Stay Action is GRANTED. The Dispute Arbitration Agreement between the parties expressly states, in ¶7, that it "shall be governed by the FAA (9 U.S.C. § 1 et. seq. The FAA provides that a

		"written provision in any . . . contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction, the refusal to perform the whole or any part thereof . . . shall be valid, irrevocable and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C. § 2.) "The 'principal purpose' of the FAA is to 'ensur[e] that private arbitration agreements are enforced according to their terms.'" (Lacayo v. Catalina Restaurant Group Inc. (2019) 38 Cal.App.5th 244, 257 [citing I(2011) 563 U.S. 333, 344].) The party seeking to compel arbitration "has the burden of proving the existence of a valid agreement to arbitrate." "Once that burden is satisfied, the party opposing arbitration must prove by a preponderance of the evidence any defense to the petition." (Ibid.) There is no dispute that plaintiff signed the Dispute Resolution Agreement, which is a stand-alone arbitration Agreement. Written arbitration agreement has been shown. The finding that a written agreement between the parties exists is not the end of the matter, however. Plaintiff says the arbitration agreement is not enforceable for three reasons. First, plaintiff argues that the Ending Forced Arbitration Act, 9 U.S.C.A. 402(a) prevents enforcement of the arbitration agreement. The Court concludes this is not correct. The Act became effective on March 3, 2022. According to the Complaint and its attachments, including her charge to the Department of Fair Employment and Housing, the act of discrimination happened on 02/22/22. This is the date her cause of action accrued. Although she argues that her cause of action did not accrue until she received her right-to-sue letter from the DFEH, no authority is cited for this proposition. It appears to the Court that none can be because a right-to-sue is a jurisdictional prerequisite to a lawsuit. [Johnson v. City of Loma Linda (2000) 24 C4th 61, 70 (internal quotes omitted); Campbell v. Regents of Univ. of Calif. (2005) 35 C4th 311] Issuance of a right to sue letter has no effect on the accrual of the underlying causes of action. Plaintiff's cause of action accrued before the EFAA became effective. Next plaintiff asserts that Labor Code §432.6 prevents enforcement of the agreement. This is not correct.
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		Implementation of the statute has been blocked by the 9th Circuit Court of Appeal on the ground of FAA preemption. [Chamber of Commerce of the United States of America v. Bonta (2023) 62 F. 4th 473, 490] Finally, plaintiff contends that the contract is unenforceable because it is unconscionable. The Court concludes that, at most, an adhesion contract shows, at the most, moderate procedural unconscionability. Plaintiff has not identified any substantive unconscionability in the arbitration agreement. She has failed to meet her burden of proving by a preponderance of the evidence that the agreement is both procedurally and substantively unconscionable, as she must. [Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114] The Court OVERRULES defendant Houdini, Inc.'s objections 1-8 to the Declaration of plaintiff Aguilar in Opposition. The Court SUSTAINS defendant Houdini, Inc.'s objections 1-5 to the Declaration of Troy Candiotti in Opposition This action is stayed pending arbitration under CCP §1281.4. Motion No. 2 Defendants, Resource Employment Solutions II California, LLC and Peoplease ,LLC to Compel Arbitration and Stay Action is GRANTED. The Dispute Resolution and Arbitration Agreement between the parties expressly states, that any dispute "shall be submitted and determined by binding arbitration under the Federal Arbitration Act ("FAA")." The FAA provides that a "written provision in any . . . contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction, the refusal to perform the whole or any part thereof . . . shall be valid, irrevocable and enforceable, save upon such grounds as exist at law or in equity for the revocation
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	of any contract.” (9 U.S.C. § 2.) “The ‘principal purpose’ of the FAA is to ‘ensur[e] that private arbitration agreements are enforced according to their terms.’” (Lacayo v. Catalina Restaurant Group Inc. (2019) 38 Cal.App.5th 244, 257 [citing I(2011) 563 U.S. 333, 344].) The party seeking to compel arbitration “has the burden of proving the existence of a valid agreement to arbitrate.” “Once that burden is satisfied, the party opposing arbitration must prove by a preponderance of the evidence any defense to the petition.” (Ibid.) There is no dispute that plaintiff signed the Dispute Resolution and Arbitration Agreement, which was clearly stated to be an arbitration agreement. A written arbitration agreement has been shown. The finding that a written agreement between the parties exists is not the end of the matter, however. Plaintiff says the arbitration agreement is not enforceable for four reasons. First, plaintiff argues that the Ending Forced Arbitration Act, 9 U.S.C.A. 402(a) prevents enforcement of the arbitration agreement. The Court concludes this is not correct. The Act became effective on March 3, 2022. According to the Complaint and its attachments, including her charge to the Department of Fair Employment and Housing, the act of discrimination happened on 02/22/22. This is the date her cause of action accrued. Although she argues that her cause of action did not accrue until she received her right-to-sue letter from the DFEH, no authority is cited for this proposition. It appears to the Court that none can be because a right-to-sue is a jurisdictional prerequisite to a lawsuit. [Johnson v. City of Loma Linda (2000) 24 C4th 61, 70 (internal quotes omitted); Campbell v. Regents of Univ. of Calif. (2005) 35 C4th 311] Issuance of a right to sue letter has no effect on the accrual of the underlying causes of action. Plaintiff’s cause of action accrued before the EFAA became effective. Next plaintiff asserts that Labor Code §432.6 prevents enforcement of the agreement. This is not correct. Implementation of the statute has been blocked by the 9th Circuit Court of Appeal on the ground of FAA preemption. [Chamber of Commerce of the United States of America v. Bonta (2023) 62 F. 4th 473, 490]
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		Next, plaintiff argues neither Resources nor Peoplease were parties to the arbitration agreement. This is not correct. The first sentence of the Agreement says “I, and my work site employer, and PLC agree” to binding arbitration for disputes about Aguilar’s employment. Whether or not Resources/ Peoplease were her employers, they were agents of Houdini for certain aspects of her employment and she agreed to arbitration with them. Indeed, plaintiff has admitted her employment relationship with Resources/Peoplease by alleging that they were joint employers with Houdini. [Complaint, ¶4] Next, plaintiff argues that the agreement to use the Federal Rules of Civil Procedure does not allow for adequate discovery. Plaintiff has cited no case saying that the Federal Rules of Civil Procedure do not assure adequate discovery under California law. Finally, plaintiff contends that the contract is unenforceable because it is unconscionable. The Court concludes that, at most, an adhesion contract shows, at the most, moderate procedural unconscionability. Other than her argument about the use of the Federal Rules of Civil Procedure, plaintiff has not identified any substantive unconscionability in the arbitration agreement. She has failed to meet her burden of proving by a preponderance of the evidence that the agreement is both procedurally and substantively unconscionable, as she must. . [Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114] This action is stayed pending arbitration under CCP §1281.4. ***CMC is vacated. ADR review is set for October 14, 2024 at 9 AM. Defendant Houdini shall give notice of all the above.
2	Commercewest Bank vs. Escondido Collision Center, Inc. 2022-01275698	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Special Interrogatories 3. Motion to Compel Production 4. Motion to Compel Response to Requests for Admissions

		Plaintiff Commercewest Bank's motions to compel defendants to respond to Form Interrogatories, Set One, and Special Interrogatories, Set One, are GRANTED. (Code Civ. Proc., § 2030.290.) Defendants Escondido Collision Center, Inc., Oceanside Collision Center, Inc., Lola E. Gogue, and Seyed M. Seyed-Rezai, shall each provide full, complete, and verified responses to Form Interrogatories, Set One, and Special Interrogatories, Set One, without objection, within 15 days. Plaintiff Commercewest Bank's motion to compel defendants to respond to Requests for Production, Set One, is GRANTED. (Code Civ. Proc., § 2031.300.) Defendants Escondido Collision Center, Inc., Oceanside Collision Center, Inc., Lola E. Gogue, and Seyed M. Seyed-Rezai, shall each provide full, complete, and verified responses to Requests for Production, Set One, without objection, and shall provide all responsive documents in their possession, custody, and/or control, without objection, within 15 days. Plaintiff Commercewest Bank's motions to deem Requests for Admission, Set One, as admitted is GRANTED. (Code Civ. Proc., § 2033.280.) The Court orders that Requests for Admissions, Set One, are each deemed admitted as to defendants Escondido Collision Center, Inc., Oceanside Collision Center, Inc., Lola E. Gogue, and Seyed M. Seyed-Rezai. Plaintiff's sanctions requests are DENIED, as the notices of motion do not comply with Code Civ. Proc., § 2023.040. Moving party shall give notice.
3	Lee vs. Mercedes-Benz USA, LLC. 2023-01316486	Motion to Compel Arbitration Defendant Mercedes-Benz USA, LLC's ["MBUSA"] to Compel Arbitration is DENIED. Defendant contends that plaintiff John Lee's claims for breach of warranty are subject to the arbitration under an arbitration provision in the California Motor Vehicle Lease Agreement ["Lease"] between Lee and non-party dealership, Fletcher Jones Motor Cars, Inc. On May 29, 2021, plaintiff executed the Leas with Fletcher Jones. The Lease included a half-page

		arbitration clause, entitled "Important Arbitration Disclosures." which stated as item 1, If either you or we choose, any dispute between you and us will be decided by arbitration and not in court." [Ameripour Declaration, Ex. 2] The Lease identified Plaintiff as the "Lessee" and "you", Fletcher Jones was identified as the "Lessor" and referred to as "we" and "us." Defendant was not a party to the Lease. The Lease³ also provided, in relevant part, that: Any claim or dispute [. . .] between you and us or our employees, agents, successors or assigns, which arises out of or relates to A credit application, this lease, or any resulting transaction or relationship arising out of this lease, shall, at the election of either you or us, or our successors or assigns, be resolved by neutral, binding arbitration and not by a court action. [Ex. 3] The general rule is that "one must be a party to an arbitration agreement to be bound by it or invoke it." [DMS Services., Inc. v. Superior Court (2012) 205 Cal.App.4th 1346, 135, internal quotes and citation omitted] Courts have recognized limited exceptions to this general rule: "there are six theories by which a nonsignatory may be bound to arbitrate: (a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary." [Young Seok Suh v. Superior Court (2010) 181 Cal.App.4th 1504, 1513] In other words, nonsignatories to a contract may enforce a contractual arbitration provision where there is a sufficient agency or identity between the signatories and nonsignatory. [See Molecular Analytical Systems v. Ciphergen Biosystems, Inc. (2010) 186 Cal.App.4th 696, 715 ["the claims against the nonsignatory were dependent upon, or inextricably bound up with, the obligations imposed by the contract Under the doctrine of equitable estoppel, if a plaintiff relies on the terms of an agreement to assert his or her claims against a nonsignatory defendant, the plaintiff may be equitably estopped from repudiating the arbitration clause of that very agreement"]; [Nguyen v. Tran (2007) 157 Cal.App.4th 1032, 1036–1037] There is a split in the appellate decisions as to whether an arbitration clause in a Lease such as the one in this case, can be enforced by a non-signatory car manufacturer under the doctrines of third party beneficiary and equitable estoppel. [See Felisilda v. FCA US LLC (2020) 53 Cal.App.5th 486, 495; I2023) 89 Cal.App.5th 1324, 1334; Montemayor v. Ford Motor
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		Company (2013) 92 Cal.App.5th 958 and Kielar v. Superior Court (2023) 2032 WL 5270559] Accordingly, this Court must make a choice between the conflicting opinions. [Auto Equity Sales, Inc. v. Superior Court (1962) 57 Cal.2d 450, 456] Montemayor and Kielar are the most recent appellate decisions and discussed both Felisilda and Ford Motor Company. This Court follows Montemayor and Kielar and their reasoning. Their reasoning equally applies to this case. Plaintiff's request for judicial notice is granted Accordingly, the motion to compel arbitration is denied. Plaintiff shall give notice.
4	Sheikholeslami vs. General Motors, LLC 2021-01223844	Motion to Compel Production Plaintiff Bahar Shikholesami's Motion to Compel Further Responses to Plaintiff's Inspection demands, set No. is GRANTED in part, CONTINUED in part, and DENIED in part. (See Code Civ. Proc. § 2031.310) The motion is denied as to Categories No. 72 & 73. The hearing of the motion is continued to January 26, 2024 at 9:30 AM, as to Category No. 56. Defendant to produce a privilege log, For each withheld document or redaction, the privilege log must state at least its date, sender/author, addressee/recipient, and the general subject matter, along with any other information needed to establish the ground for withholding or redacting. (See Hernandez v. Superior Court (2003) 112 Cal.App.4th 285, 291-292; Wellpoint Healthcare Networks, Inc. v. Superior Court (1997) 59 Cal.App.4th 110, 129-130.) "The party claiming the privilege has the burden to show that the communication sought to be suppressed falls within the terms of the claimed privilege." (Lipton v. Superior Court (1996) 48 Cal.App.4th 1599, 1619.) The privilege log to be served within 15 days. Each party may file a supplemental brief, not to exceed 7 pages, solely as to issues in the privilege log, which

		shall be filed and served at least 9 court days before the continued hearing. The motion is granted as to the remaining disputed inspection demand categories, except that the records to be produced shall be limited to GMC Acadia SUV models with the same engine as plaintiff's Vehicle. Defendant's objections either lacked merit, or defendant failed to justify the objections in its opposition. (See Coy v. Superior Court (1962) 58 Cal.2d 210, 220-21; Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.) Defendant to serve verified responses without objections and all responsive records within 30 days. The Court imposes \$3,000.00 in monetary sanctions against defendant General Motors, LLC, payable to counsel for plaintiff within 30 days. Plaintiff shall give notice of all the above.
5	Neher vs. Credit Union of Southern California 2022-01276882	Motion for Protective Order Plaintiff Patrick Neher's Motion for a Protective Order is DENIED. (See Code Civ. Proc. § 2025.420.) Plaintiff has failed to show good cause for the requested protective order in order to prevent "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." The Court rules as follows on the evidentiary objections: Declaration of Patrick Neher. 1. Sustained, Inadmissible speculation and conclusions, and calls for an expert medical opinion. Declaration of Craig Horowitz. 1-2. Sustained, irrelevant. 3. Sustained, Inadmissible speculation and conclusions, and calls for an expert medical opinion as to plaintiff's and counsel's medical condition.

		The deposition shall occur in person, and defendant shall ensure that all physically present participants in the deposition shall comply with local health and safety ordinances, rules, and orders. (See Code Civ. Proc. § 2025.310, subd. (b).) All request for sanctions are denied. The Court declines to consider the declarations submitted with plaintiff's reply brief. (See Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537-38 [Anti-SLAPP]). Plaintiff shall give notice.
6	Oden vs. The Prentice School 2023-01315049	Motion to Be Relieved as Counsel of Record Attorney Garrett R. Chambers and his firm Chambers & Noronha's motion to withdraw as attorney of record for plaintiff Madison Oden is GRANTED. The order shall become effective upon the filing of the proof of service of the executed order.
7	Gupta vs. Nationstar Mortgage LLC 2023-01324529	Demurrer to Complaint * Motion vacated. Case was dismissed. See Request for Dismissal filed 08/31/2023 (ROA 25)*
8	Ro vs. TRT Frisco, Inc. 2022-01292061	Motion to Be Relieved as Counsel of Record Attorney Kenneth W. Chung's motion to withdraw as attorney of record for plaintiff Sung K. Ro is GRANTED. The order shall become effective upon the filing of the proof of service of the executed order.
9	Villalobos vs. FCA US LLC 2022-01293599	1. Motion to Compel Deposition (Oral or Written) 2. Case Management Conference * Motion and CMC continued to 01/19/2024. See stipulation filed 09/06/2023 (ROA 100) *
10	Stache vs. STONE RIDGE ESTATE HOMEOWNERS ASSOCIATION	Motion for Summary Judgment and/or Adjudication * Motion off calendar. Notice of Settlement of Entire Case filed 08/28/2023 (ROA 295). *

	2020-01140898	
11	Coffey vs. Newport Dunes Resort and Marina 2020-01175786	Motion for Summary Judgment and/or Adjudication Defendants Terra Vista Management and Newport Dunes Marina, LLC's motion or summary judgment, or in the alternative, summary adjudication as to the complaint of Clifford Coffey is DENIED in its entirety. Defendants have not met their initial burden of proof showing the alleged defective condition of the property on the day of the accident was "open and obvious" as a matter of law. That question is for the jury to decide. Defendants' objections to the declaration of Clifford Coffey are overruled. The objections to portions of the plaintiff's response to the Separate Statement are overruled. Moving Party shall give notice